

**TENTATIVE RULINGS
DEPARTMENT C11 - LAW AND MOTION CALENDAR**

Judge Jonathan Fish

June 8, 2026

LAW AND MOTION IS HEARD ON MONDAYS AT 1:30 P.M.

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are **NOT** typically provided for law and motion matters in this Department. If a party desires a record of a law and motion proceeding, it must provide a court reporter. Parties must comply with the Court's policy on the use of privately-retained court reporters, which can be found at:

- [Civil Court Reporter Pooling](#);
- Please see the Court's website at [Court Reporter Interpreter Services](#) for additional information regarding the availability of court reporters.

Tentative Rulings: The Court endeavors to post tentative rulings on the Court's website by 5 p.m. on the preceding Friday. Do NOT call the Department for a tentative ruling if none is posted. Tentative rulings may not be posted on every case – or may be posted the morning of the hearing – due to the Court's other commitments or the nature of a particular motion. **The Court will NOT entertain a request for continuance or the filing of further documents once a tentative ruling has been posted.**

Submitting on tentative rulings: If **all** counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5211. Please do not call the Department unless **all** parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature, if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Remote and In-Person Proceedings. Parties are referred to the Court's "Appearance Procedures and Information – Civil Unlimited and Complex" and "Guidelines for Remote Appearances" available on the Public Website.

#	Case Name	
1	American Lending Center Holdings Inc. vs. Zhou 2025-01507222	Motion to Appear Pro Hac Vice Granted. CMC is off calendar Jury Trial set 10-18-2027 at 9:00 am, MSC 9-17-2027 at 9:00 a.m. Moving party to give notice
2	C. vs. County of Orange 2024-01436607	Petition for Writ Continued
3	Chang vs. Windwood Townhomes Maintenance Association 2025-01528996	Demurrer to Complaint / Motion to Strike Complaint Defendant Yang Meng's demurrer to the third cause of action for nuisance in the complaint of plaintiffs Anne Chang and Homa Feizi is sustained with 15 days leave to amend. Defendant's motion to strike is denied as to the prayer for attorneys' fees; it is otherwise moot. <u>Demurrer</u> Legal Standard on Demurrer A demurrer can be used only to challenge defects that appear within the "four corners" of the pleading – which includes the pleading, any exhibits attached, and matters of which the court is permitted to take judicial notice. <i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318; <i>Donabedian v. Mercury Ins. Co.</i> (2004) 116 Cal.App.4 th 968, 994. Limited to the "four corners" as such, a pleading is adequate if it contains a reasonably precise statement of the ultimate facts, in ordinary and concise language, and with sufficient detail to acquaint a defendant with the nature, source and extent of the claim. <i>Leek v. Cooper</i> (2011) 194 Cal.App.4 th 399, 413. On demurrer, a complaint must be liberally construed. Code Civ. Proc. § 452; <i>Stevens v. Superior Court</i> (1999) 75 Cal.App.4 th 594, 601. All material facts properly pleaded, and reasonable inferences,

must be accepted as true. *Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 966-967.

A demurrer for uncertainty is not intended to reach the failure to incorporate sufficient facts in the pleading, but is directed at the uncertainty existing in the allegations actually made. *People v. Lim* (1941) 18 Cal. 2d 872, 883. “A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” *Khoury v. Maly’s of California, Inc.* (1993) 14 Cal. App. 4th 612, 616. Errors and confusion created by “the inept pleader” are to be forgiven if the pleading contains sufficient facts entitling plaintiff to relief. *Saunders v. Cariss* (1990) 224 Cal. App. 3d 905, 908. A party attacking a pleading on “uncertainty” grounds must specify how and why the pleading is uncertain, and where that uncertainty can be found in the challenged pleading. *Fenton v. Groveland Community Services Dept.* (1982) 135 Cal.App.3d 797, 809 (disapproved on other grounds in *Katzberg v. Regents of the University of California* (2002) 29 Cal.4th 300).

Discussion

Third Cause of Action for Nuisance

The elements of an action for private nuisance are: (1) interference with use and enjoyment of property; (2) that is substantial, i.e., that causes the plaintiff to suffer “substantial actual damage”; and (3) that is unreasonable. *San Diego Gas & Electric Co. v. Super. Ct.* (1996) 13 Cal.4th 893, 938. “[A] plaintiff bringing a cause of action for private nuisance must show harm to a property interest.” *Orange County Water Dist. v. Sabic Innovative Plastics US, LLC* (2017) 14 Cal.App.5th 343, 402.

“[T]o proceed on a private nuisance theory the plaintiff must prove an injury specifically referable to the use and enjoyment of his or her land.” *Mendez v. Rancho Valencia Resort Partners, LLC* (2016) 3 Cal.App.5th 248, 262. “First, the plaintiff must prove an interference with his use and enjoyment of his property. (*Ibid.*) Second, ‘the invasion of the plaintiff’s interest in the use and enjoyment of the land [must be] *substantial*, i.e., that it cause[s] the plaintiff to suffer ‘substantial actual damage.’ *Ibid.* Third, ‘[t]he interference with the protected interest must not only be substantial, but it must also be unreasonable’ [citation], i.e., it must be ‘of such a nature, duration or amount as to constitute unreasonable interference with the use and enjoyment of the land.’” *Id.* at 262-263.

Here, Plaintiffs have not alleged a current or continuing condition that is depriving them of the use and enjoyment of their property. Rather,

Plaintiffs allege that as a result of the fire and during the unduly extended time of repair they were deprived of the use of their units and that this loss caused them damages that they seek to recover. [Complaint, ¶¶ 81-91.] Nor do Plaintiffs seek an injunction against any conduct or condition that is currently depriving them of the use and enjoyment of their property. [*Id.* at Prayer.]

In short, this is a negligence claim – which is already asserted in Plaintiffs’ complaint in the second cause of action. Indeed, the second cause of action alleges the same conduct by each of Meng and the HOA causing the same damages. [See Complaint, ¶¶ 72-80.]

“Where negligence and nuisance causes of action rely on the same facts about lack of due care, the nuisance claim is a negligence claim.” *Avedon v. State*, 186 Cal. App. 4th 1336, 1345 (2010), review denied (Oct. 13, 2010) (quoting *El Escorial Owners' Ass'n v. DLC Plastering, Inc.*, 154 Cal. App. 4th 1337, 1349 (2007) and citing *Melton v. Boustred*, 183 Cal. App. 4th 521, 542 (2010)). Furthermore, a nuisance cause of action pleaded in a complaint not requesting an injunction but seeking only damages renders a nuisance cause of action as a negligent cause of action. 2 California Ins. Law Dictionary & Desk Ref. § N41 (2011 ed.) (citing *El Escorial Owners' Ass'n v. DLC Plastering, Inc.*, 154 Cal. App. 4th 1337, 1349 (2007) wherein it is stated, “A cause of action alleging a continuing nuisance is usually accompanied by a request for an injunction.”)

Accordingly, the demurrer is sustained.

Motion to Strike

Legal Standard

A court may strike out any irrelevant, false, or improper matter inserted in any pleading or strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule or an order of the court. Code Civ. Proc. § 436. “Irrelevant” matters include: allegations not essential to the claim, allegations neither pertinent to nor supported by an otherwise sufficient claim or a demand for judgment requesting relief not support by the allegations of the complaint. Code Civ. Proc. § 431.10(b). A motion to strike can also strike legal conclusions. *Weil & Brown*, Cal. Prac. Guide, *Civil Proc. before Trial*, ¶ 7:179 (2010). Conclusory allegations are permitted, however, if they are supported by other factual allegations in the complaint. *Perkins v. Superior Court* (1981) 117 Cal. App. 3d 1, 6.

Motions to strike are disfavored. Pleadings are to be construed liberally with a view to substantial justice. Cal. Code Civ. Proc. § 452; *Weil & Brown*, Cal. Prac. Guide, *Civil Proc. before Trial*, ¶ 7:197 (2010). The allegations of the complaint are presumed true; they are read as a whole and in context. *Clauson v. Superior Court* (1998) 67 Cal. App. 4th 1253, 1255.

Discussion

Allegations in Third Cause of Action for Nuisance

Given the recommendation to sustain the demurrer to the third cause of action for nuisance, the motion to strike directed at allegations within that cause of action is moot.

Attorneys' Fees

In the absence of an agreement for recovery of fees or specific statutory provision, attorneys' fees are not generally recoverable by the prevailing party in a lawsuit. *Trope v. Katz* (1995) 11 Cal. 4th 274, 278-79. Accordingly, in the absence of a basis for recovery, Plaintiff's prayer for attorneys' fees is subject to being stricken. Such basis must appear on the face of the pleading or by matters that may properly be judicially noticed. Code Civ. Proc. § 431.10(b)(3).

In this case, Plaintiffs allege a basis for recovery of attorneys' fees under the Davis-Stirling Act, Civil Code section 5975, which provides that "[i]n an action to enforce the governing documents, the prevailing party shall be awarded reasonable attorney's fees and costs." Civ. Code § 5975(c).

In his moving papers, Defendant Meng argues that Plaintiffs' action is not one to enforce the CC&Rs but is simply an action for breach of the CC&Rs.

Plaintiffs' action for breach of the CCR&Rs is an action to enforce the CC&Rs. *Chee v. Amanda Goldt Property Management* (2006) 143 Cal.App.4th 1360, 1381. Moreover, Plaintiffs seek declaratory (*i.e.*, equitable relief) as well as damages. *See id.* at 1379-1380.

The motion to strike Plaintiffs' prayer for attorneys' fees is therefore denied.

Case Management Conference Continued to 8/28/2026 at 9:00 a.m.

Moving party will give notice.

4	Doe vs. Montage International North America, LLC 2025-01490801	Motion to Compel Production Plaintiff Jane Doe’s motion to compel Defendant Montage International North America, LLC’s further responses to her requests for production of documents is denied. Pursuant to Code Civ. Proc., § 2031.310 a motion to compel further responses to inspection demands “shall be accompanied by a meet and confer declaration under Section 2016.040.” “A meet and confer declaration in support of a motion shall state facts showing a <u>reasonable and good faith attempt</u> at an informal resolution of each issue presented by the motion.” (Code Civ. P. § 2016.040 [emphasis added].) Here, Plaintiff’s counsel sent a single letter on 10/6/25 to Defense counsel. (Louro Decl., ¶ 7, Ex. B.) With respect to the requests at issue, the letter only stated: Nos. 7, 8, 16, 21, 26: The requests seek documents relating to other employee’s sexual misconduct. The information sought are directly relevant to Plaintiff’s claims. Documents that show other instances of misconduct by Montage employees are relevant to showing the behavior of other predators within Montage and Montage’s response in pattern and practice. The documents sought go directly to Montage’s handling of similar allegations. Please supplement. No. 22: Likewise, this request goes directly to Plaintiff’s claim and Montage’s handling of her specific complaint. No third party employment file is in contemplation. Please supplement. (<i>Id.</i>) Thereafter, Defendant served a supplemental response to No. 16, only on 10/24/25. (Louro Decl., 8, Ex. C.) There was no other meeting and conferring. This motion was filed on 11/14/25. What constitutes a proper meet and confer attempt is up to the discretion of the Court. In <i>Obregon v. Superior Court</i> (1998) 67 Cal.App.4th 424, the plaintiff “propounded grossly overbroad interrogatories,” and “[u]pon receiving the expectable objections, plaintiff simply sent a single brief letter, late in the relevant time period.” (<i>Id.</i> at 432.) The court also noted that the motion to compel “makes no effort to explain why
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		interrogatories of such breadth are proper in this case, an omission that reasonably suggests lack of a proper discovery objective.” (<i>Id.</i>) It states that “[t]he time available before the motion filing deadline, and the extent to which the responding party was complicit in the lapse of available time, can ... be relevant,” and that an “evaluation of whether, from the perspective of a reasonable person in the position of the discovering party, additional effort appeared likely to bear fruit, should also be considered.” (<i>Id.</i>) The “level of effort that is reasonable is different in different circumstances, and may vary with the prospects for success. These are considerations entrusted to the trial court's discretion and judgment, with due regard for all relevant circumstances.” (<i>Id.</i> at 432-33.) Plaintiff’s 1 ½ page letter addressing her document demands, form interrogatories and requests for production of documents is not sufficient to comply with Plaintiff’s meet and confer obligation. The letter cites to no legal authority. Filing the motion without at least sending a follow-up email, letter or making a telephone call was premature and does not demonstrate a good faith effort pursuant to Code Civ. Proc., § 2016.040. Therefore, the motion is denied for failure to properly meet and confer. Defendant shall give notice.
5	First Foundation Inc. vs. Keller 2025-01493220	Motion to Compel Production This is continued to June 29, 2026 at 1:30 p.m. Counsel are ordered to meet and confer by phone or in person on ALL outstanding discovery disputes (whether or not the discovery is currently the subject of a compel motion). This meet and confer shall include the subject of sanctions. The court will withhold its ruling on the June 1, 2026 submitted matter. Parties are to submit a joint statement regarding the meet and confer efforts specifically outlining which issues remain in dispute and why. This is to be filed no later than June 22, 2026. Moving party will give notice
6	Kelson vs. Marriott International, Inc. 2021-01213506	Motion to Compel Plaintiff's Compliance With This Court's Order Dated 02/03/2026 The unopposed motion by Defendant Residence Inn by Marriott, LLC, erroneously sued and served as Marriot International, Inc. (“Moving Party”), for an order compelling Plaintiff Kathryn Kelson (“Plaintiff”)

to comply with the Court's February 3, 2026 Order pursuant to CCP sections 128, subdivision (a)(4) and 2030.290 is GRANTED.

Pursuant to CCP section 2030.290, subdivision (c), if a party "fails to obey an order compelling answers, the court may make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction under Chapter 7 (commencing with Section 2023.010). In lieu of or in addition to that sanction, the court may impose a monetary sanction under Chapter 7 (commencing with Section 2023.010)." (Code Civ. Proc., § 2030.290, subd. (c).)

CCP section 128, subdivision (a)(4) provides the Court with the power to "compel obedience to its judgments, orders, and process, and to the orders of a judge out of court, in an action or proceeding pending therein." (Code Civ. Proc., § 128, subd. (a)(4).)

Moving Party showed the Court issued an order on February 3, 2026 ordering Plaintiff to serve verified Code-compliant responses to Moving Party's special interrogatories, set three, supplemental interrogatory, set one, and supplemental requests for production, set one within 15 days. (Hawatmeh Decl., ROA No. 277, ¶ 8, Exhibit 2.) Notice of ruling was served by mail on Plaintiff (*Id.*, ¶¶ 8 and 13, Exhibit 3 and Exhibit 8; *see*, Proof of Service, ROA No. 264.)

Moving Party showed despite meeting and conferring with Plaintiff and resending the discovery at issue pursuant to Plaintiff's requests, Plaintiff has not served any responses to the discovery at issue. (Hawatmeh Decl., ¶¶ 12, 14-16, and 18-21, Exhibit 7, Exhibit 9, Exhibit 10, Exhibit 11, Exhibit 12, and Exhibit 13.)

Moving Party described the Court's prior order, which included monetary sanctions. (Hawatmeh Decl., ¶ 8, Exhibit 2.) Plaintiff paid the monetary sanctions (Hawatmeh Decl., ¶ 17.)

Unless Plaintiff shows compliance with the Court's February 3, 2026 Order, Moving Party's unopposed motion is granted. Plaintiff is once again ordered to serve verified Code-compliant responses to Moving Party's special interrogatories, set three, supplemental interrogatory, set one, and supplemental requests for production, set one within 15 days.

In light of the Court's 4/21/2026 Order granting Moving Party's *ex parte* application to shorten time to hear this motion and to continue the trial date, Moving Party's request to continue the trial is moot.

Moving Party shall give notice.

7	Lopez vs. Trans Pak, Inc. 2024-01437506	Motion to Compel Further Responses to Form Interrogatories The motion by Plaintiff Alejandro Lopez (“Plaintiff”) for an order compelling Defendant TransPak, Inc. (“TransPak”) to provide further responses to Plaintiff’s Form Interrogatories – Employment, Set One, is moot in part and granted in part. Plaintiff’s motion for an order compelling TransPak to provide further responses to Plaintiff’s Form Interrogatories – General, Set One, is moot. Plaintiff seeks an order compelling TransPak to serve further responses to form interrogatories – employment, set number one, numbers 200.3, 200.4, 200.6, 201.1, 201.2, 201.3, 201.5, 201.6, 204.3, 204.4, 204.5, 204.6, 204.7, 207.1, 207.2, 209.2, 211.1, 211.2, 214.1, 215.1, and 216.1 and further responses to form interrogatories – general, set number one, numbers 3.1, 3.6, 3.7, 12.1, 12.2, 12.3, 12.6, and 17.1. The Court notes TransPak did not include the verification for TransPak’s supplemental responses; however, there is no dispute TransPak served verified supplemental responses on January 30, 2026. (Vang Decl. ISO Motion to Compel Further Responses to Employment Interrogatories, ¶ 16, Exhibit L; Vang Decl. ISO Motion to Compel Further Responses to General Interrogatories, ¶ 16, Exhibit L; Reply ISO Motion to Compel Further Responses to Employment Interrogatories, 3:13-14 and 4:14-15; Reply ISO Motion to Compel Further Responses to General Interrogatories, 3:10-11 and 4:12-13.) Although there is no dispute verified supplemental responses were served, the Court notes TransPak did not show TransPak supplemented its response to form interrogatory number 209.2. (<i>See</i>, Vang Decl., ROA No. 112, ¶ 16, Exhibit L; <i>see also</i>, TransPak Separate Statement, ROA No. 114, 22:24-23:27.) TransPak initial responses included only objections. TransPak did not justify its objections to this interrogatory. The Court finds Plaintiff sufficiently met and conferred with TransPak before filing this motion. Although Plaintiff sent only one letter and demanded responses within a week, Plaintiff waited over a month for supplemental responses before bringing these motions. Accordingly, the motion to compel further responses to interrogatory number 209.2 is granted. (Code Civ. Proc., § 2030.300, subd. (a); <i>Fairmont Ins. Co. v. Superior Court</i> (2000) 22 Cal.4th 245, 255.) TransPak shall serve a verified supplemental Code-compliant response to form interrogatory number 209.2 within 15 days.

		Plaintiff's motions as to the remaining interrogatories are moot. Transpak did not show TransPak acted with substantial justification or that the imposition of sanctions would be unjust. TransPak shall pay The Finkel Firm the total amount of \$3,500 in 30 days. (Code Civ. Proc., § 2030.300, subd. (d); Cal. Rules of Ct., Rule 3.1348(a).) Plaintiff shall give notice.
8	Menon vs. Memorial Care Saddleback Medical Center 2024-01379144	Motion for Summary Judgment and/or Adjudication Defendant Cimberly Penick, D.O.'s ("Defendant") Motion for Summary Judgment is granted. Plaintiffs Parvathi Devi Geetha Devi and Shreejith Menon, individually, and as the guardian ad litem of Krishna Menon ("Minor," collectively, "Plaintiffs"), assert causes of action for medical negligence and negligent infliction of emotional distress against Defendant. With respect to the moving defendant, Plaintiffs allege Defendant was negligent in the "prenatal, labor and delivery and post-delivery care of" Minor and Devi; that Minor "suffered severe and irreversible brain damage and additional physical injuries that currently require daily dialysis treatments and a feeding tube on year post-birth"; and, Devi "suffered severe pain, suffering, and emotional distress." (Compl. at pp. 4-5, ¶ GN-1.) Under their fourth cause of action for negligent infliction of emotional distress, Devi and Menon allege they are "entitled to recover for this emotional distress" pursuant to <i>Thing v. La Chusa</i> (1989) 48 Cal. 3d 644." (Compl. at p. 7, ¶ GN-1.) Defendant moves for summary judgment as to every negligence claim against her on the grounds that: [1] she at all times complied with the applicable standard of care; [2] her conduct was not a substantial factor in causing any of the alleged damages; and, [3] a bystander theory of negligent infliction of emotional distress fails without the existence of any underlying, independently actionable tort. (ROA 102 [Not. of Mot. at p. 2].) <u>Summary Judgment Standard</u> "[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law." (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850.) A "party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any

triable issue of material fact. . . .” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) “A prima facie showing is one that is sufficient to support the position of the party in question.” (*Id.* at p. 851.) A defendant moving for summary judgment satisfies his or her initial burden by showing that one or more elements of the cause of action cannot be established or that there is a complete defense to the cause of action. (Code Civ. Proc., § 437c, subd. (p)(2).) The scope of this burden is determined by the allegations of the plaintiff’s complaint. (*FPI Development v. Nakashima* (1991) 231 Cal.App.3d 367, 381-382 [pleadings serve as the outer measure of materiality in a summary judgment motion]; *580 Folsom Associates v. Prometheus Development Co.* (1990) 223 Cal.App.3d 1, 18-19 [defendant only required to defeat allegations reasonably contained in the complaint].)

Once a defendant meets its prima facie showing, the burden shifts to the plaintiff to show by reference to specific facts the existence of a triable issue as to that affirmative defense or cause of action. (*Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at p. 850.) To meet this burden, the plaintiff must present substantial and admissible evidence creating a triable issue. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 163.) Theoretical, imaginative, or speculative submissions are insufficient to stave off summary judgment. (*Doe v. Salesian Society* (2008) 159 Cal.App.4th 474, 481; *Bushling v. Fremont Med. Center* (2004) 117 Cal.App.4th 493, 510.)

Medical Negligence Claims

“The elements of a cause of action for medical malpractice are: (1) a duty to use such skill, prudence, and diligence as other members of the profession commonly possess and exercise; (2) a breach of the duty; (3) a proximate causal connection between the negligent conduct and the injury; and (4) resulting loss or damage.” (*San Antonio Regional Hospital v. Superior Court* (2024) 102 Cal.App.5th 346, 350, citing *Johnson v. Superior Court* (2006) 143 Cal.App.4th 297, 305.) “The first element, standard of care, is the key issue in a malpractice action and can only be proved by expert testimony, unless the circumstances are such that the required conduct is within the layperson’s common knowledge.” (*Ibid.*, citing *Lattimore v. Dickey* (2015) 239 Cal.App.4th 959, 968.) “Proving the third element, causation, also requires “ ‘competent expert testimony.’ ” (*Ibid.*, *Miranda v. Bomel Construction Co., Inc.* (2010) 187 Cal.App.4th 1326, 1336.)

“An expert declaration is admissible to support or defeat summary judgment if the expert’s testimony would be admissible at trial in accordance with Evidence Code section 720.” (*Bozzi v. Nordstrom, Inc.* (2010) 186 Cal.App.4th 755, 761.) Per Evidence Code section 720, “[a] person is qualified to testify as an expert if he has special

knowledge, skill, experience, training, or education sufficient to qualify him as an expert on the subject to which his testimony relates.” (Evid. Code, § 720, subd. (a).) The expert declaration must disclose the matters relied on in forming its opinion. (See *Kelley v. Trunk* (1998) 66 Cal.App.4th 519, 524 [expert declaration not admission because “it did not disclose the matter relied on in forming the opinion expressed”].) The matter relied on must, itself, be properly authenticated and placed before the court. (*Garibay v. Hemmat* (2008) 161 Cal.App.4th 735, 743 [moving defendant failed to meet initial burden where expert stated he relied on medical records that were not before the court; “An expert’s opinion based on assumptions of fact without evidentiary support has no evidentiary value”]; accord *Shugart v. Regents of University of California* (2011) 199 Cal.App.4th 499, 505 [trial court erred in concluding that plaintiff’s expert failed to raise a triable issue of fact, and his declaration had no evidentiary value; although medical history relied on was not attached to plaintiff’s expert’s declaration, the records had already been properly authenticated and placed before the court by the defendant].)

Here, Defendant has provided a declaration from Roy Z. Mansano, M.D. (ROA 103.) Dr. Mansano attests he is a physician licensed to practice medicine in the State of California and that he is currently in private practice in the San Fernando Valley. He is board-certified in obstetrics and gynecology as well as maternal fetal medicine. (Mansano Decl. at ¶¶ 1-2.) In preparing his declaration he reviewed the materials that were submitted in connection with this motion, including Mother’s and Minor’s medical records. (Mansano Decl. at ¶ 5.)

Dr. Mansano opines, in relevant part, that: “Based upon my review of the above-delineated medical records, as well as my education, training, and experience, it is my opinion, to a reasonable degree of medical probability, that Dr. Penick complied with the standard of care in her care and treatment of plaintiff. She appropriately monitored the fetus, consulted with a maternal-fetal medicine specialist, and proceeded with Cesarean section according to plan when the abdominal ultrasound was suspicious for bleeding.” (Mansano Decl. at ¶ 13.) Dr. Mansano further states, “it is also my opinion that, to a reasonable degree of medical probability, Dr. Penick did not cause or contribute to any delayed delivery or adverse outcome, including [Minor’s] NICU admission and subsequent diagnosis of mild hypoxic ischemic encephalopathy secondary to placental abruption because she timely evaluated plaintiff’s complaints and upon performing an ultrasound that was suspicious for bleeding she promptly took plaintiff to surgery for an emergency Cesarean section delivery.” (Mansano Decl. at ¶ 15.)

Plaintiffs did not submit any objections to this testimony. Based on the foregoing, the Court finds Defendant met her initial burden of showing that the care provided to Minor and Devi were, to a reasonable degree of medical probability, within the applicable standard of care in the community, and that no negligent act or omission by Defendant was a substantial factor in causing the alleged damages.

Negligent Infliction of Emotional Distress Claim

“Negligent infliction of emotional distress “ ‘is not an independent tort, but the tort of *negligence*,’ ” to which “ ‘traditional elements of duty, breach of duty, causation, and damages apply.’ ” (*Downey v. City of Riverside* (2024) 16 Cal.5th 539, 547, citation omitted.) In other words, a bystander’s claim for negligent infliction of emotional distress depends upon the existence of an act of negligence that caused injury to the victim. (*Thing v. La Chusa* (1989) 48 Cal.3d 644, 647 [“It is in that context that we consider the appropriate application of the concept of ‘duty’ in an area that has long divided this court—recognition of the right of persons, whose only injury is emotional distress, to recover damages when that distress is caused by knowledge of the injury to a third person *caused by the defendant’s negligence*”] [emphasis added].)

Because Defendant has met her burden on the medial negligence claims, Plaintiffs’ bystander theory of recovery under *Thing v. La Chusa*, which is based on witnessing a “negligent injury” to Minor, also fails absent a triable issue of fact on the negligence claim.

Request for Continuance

Plaintiffs’ only basis for opposing the motion is that the motion is “premature as facts essential to Plaintiffs’ Opposition exist but cannot currently be presented because there has unfortunately developed an irremediable breakdown in the attorney client relationship [.]”

Plaintiffs request “a continuance of the pending Motion for Summary Judgment for 120 days while the Plaintiffs seek new counsel.” (ROA 151 [Opp’n at p. 2].)

“If it appears from the affidavits submitted in opposition to a motion for summary judgment or summary adjudication, or both, that facts essential to justify opposition may exist but cannot, for reasons stated, be presented, the court shall deny the motion, order a continuance to permit affidavits to be obtained or discovery to be had, or make any other order as may be just.” Alternatively, the motion “may also be made by ex parte motion at any time on or before the date the

opposition response to the motion is due. (Code Civ. Proc., § 437c, subd. (h).)

“A declaration in support of a request for continuance under section 437c, subdivision (h) must show: “(1) the facts to be obtained are essential to opposing the motion; (2) there is reason to believe such facts may exist; and (3) the reasons why additional time is needed to obtain these facts. (*Cooksey v. Alexakis* (2004) 123 Cal.App.4th 246, 254.) The party requesting a continuance does not need to show that the evidence *does* exist, but it must show that it *may* exist. Further, the supporting affidavit or declaration “must detail the specific facts that would show the existence of controverting evidence.” (*Granadino v. Wells Fargo Bank, N.A.* (2015) 236 Cal.App.4th 411, 420.) If this showing is made, then the continuance is “virtually mandated.” (*Dee v. Vintage Petroleum, Inc.* (2003) 106 Cal.App.4th 30, 34, citation omitted.) “Continuance of a summary judgment hearing is not mandatory, however, when no affidavit is submitted or when the submitted affidavit fails to make the necessary showing under section 437c, subdivision (h).” (*Cooksey v. Alexakis* (2004) 123 Cal.App.4th 246, 254.)

Here, Plaintiffs’ counsel states that the breakdown in the attorney client relationship is the reason why “Plaintiffs are currently unable to present contrary expert testimony in opposition to Dr. Penick’s MSJ.” (Rosenthal Decl. at ¶ 4.) In his declaration, Menon states that he and his wife “believe this case has merit” and “believe the evidence supports viable claims of medical negligence.” (Menon Decl. at ¶¶ 3, 5.) However, Memon does not establish how he is qualified as an expert to attest to these matters, nor does he even explain why he thinks this case may have merit as against Defendant. Plaintiffs’ supporting declarations do not meet the showing required under CCP section 437c(h), because they do not show there is any reason to believe that the facts necessary to oppose the motion may exist.

The Court notes this action was filed in February 2024 (i.e., more than two years ago). Defendant’s counsel attests that no written discovery has been served by Plaintiffs, nor have they noticed the depositions of any defendant or witnesses. (ROA 161 [Bunch Decl. at ¶ 4].) Plaintiffs’ counsel’s (recent) request to withdraw does not explain why opposing evidence could not have been obtained in the more than two years since this action was filed, or the months since this motion was filed.

For the foregoing reasons, Defendant Penick’s motion for summary judgment is granted; Plaintiffs’ request for a continuance is denied.

		Defendant is ordered to give notice of the ruling.
9	Merchant Star International General Trading, LLC vs. Kiani 2021-01219185	Motion to Disqualify Attorney of Record As to the motion filed by Merchant Star International General Trading, the court will hear argument. Oddly, other motions were filed on the Merchant Star Reservation number. They are not on calendar and will not be entertained at this time.
10	Michel vs. BMW Financial Services NA, LLC 2024-01423542	Motion for Protective Order Off Calendar
11	Prato Properties LLC vs. Lee & Associates Commercial Real Estate Services, Inc. - Irvine, a California Corporation 2021-01234131	1. Motion for Reconsideration 2. Status Conference Continued to 08/17/2026
12	Ruelas vs. FCA US LLC 2025-01527800	1. Demurrer to Complaint - Withdrawn 2. Motion to Strike Complaint - Withdrawn 3. Case Management Conference – Continued to 07/13/2026